

3.	<i>In Re: 4968 Avila Way, Buena Park, CA 90621</i> 2025-01489807	Before the court is the motion of claim for disbursement of surplus funds by claimant Nina Ilkhanoff (Claimant). As set forth below, the hearing is continued to THURSDAY, AUGUST 6, 2026, AT 2:00 P.M., IN DEPARTMENT C23. On June 11, 2025, petitioner Quality Loan Service Corp. (Petitioner) filed a petition and declaration regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale held on January 6, 2025, regarding real property located at 4968 Avila Way, Buena Park, California 92601 (Property). The Property had sold for \$569,100, and after paying the amounts set forth in Section 16 of the petition, a surplus balance of \$27,144 remained. On September 25, 2025, the court granted Petitioner's request to deposit the surplus funds with the court for the court to adjudicate the owner of those funds. (ROA 16.) Petitioner subsequently deposited the \$27,144 in surplus funds and was discharged from responsibility for distribution of the surplus funds. (ROA 21, 27.) No claim to the surplus funds, however, was asserted prior to or at the hearing on unresolved claims held on December 11, 2025, and the funds continue to remain on deposit with the court. (ROA 32.) Claimant now has filed this motion of claim for disbursement of surplus funds. (ROA 49.) The proof of service submitted with the motion, however, is deficient in multiple ways. First, the proof of service filed on March 16, 2026, states a "case management statement" was served. (ROA 39.) It does not identify the notice of motion, memorandum of points and authorities, or the supporting declaration as being served. Second, the proof of service states the "case management statement" was served solely on counsel for Homestead Equities, LLC. All documents also should be served on Homestead Equities, LLC at the address listed in attachment 8 to the petition. The motion itself also is deficient in that the declaration of Nina Ilkhanoff submitted as the factual basis for the motion is not signed by Nina Ilkhanoff. Instead, the declaration is signed by Cynthia Ilkhanoff. The signature block states Cynthia Ilkhanoff has a power of attorney for Nina Ilkhanoff. Notably, that portion of the declaration is not under penalty of perjury and no copy of the alleged power of attorney was submitted with the declaration showing the scope of the power of attorney. Furthermore, Code of Civil Procedure
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		section 2015.5 allows declarations under penalty of perjury when “subscribed” by the party or witness. The term “subscribe” means “to sign with one’s own hand.” (<i>Doe v. Superior Court</i> (2011) 194 Cal.App.4th 750, 754.) Here, the declaration is improperly signed by Cynthia Ikhanoff of facts apparently personally known by Nina Ilkhanoff. The court will need admissible evidence in the form of a declaration by someone with personal knowledge of the facts presented or facts of which the court may properly take judicial notice. The court also will require much more detail than is provided in the current declaration, which is highly conclusory and fails to establish the necessary foundation for many of the facts allegedly presented. The court therefore CONTINUES the motion as set forth above. At least 16 court days before the next hearing date, Claimant must (1) submit admissible evidence showing entitlement to the surplus funds, i.e., Claimant’s own sworn declaration or the sworn declaration of her power of attorney Cynthia Ilkhanoff, attesting to facts within her own personal knowledge and attaching a copy of the power of attorney; and (2) file a proof of service of all moving papers on all potential claimants identified in the trustee’s declaration at the addresses specified therein - ROA 2 at Ex. C. Counsel for Claimant is ordered to give notice.
4.	<i>In Re: 17150 Fremont Lane, Yorba Linda, CA 92886</i> <i>2025-01526961</i>	On November 13, 2025, petitioner Clear Recon Corp (Petitioner) filed the petition regarding unresolved claims and deposit of undistributed surplus proceeds of trustee’s sale under Civil Code section 2924j. Petitioner filed the petition following a trustee’s sale pursuant to a deed of trust conducted on January 22, 2024, regarding the property located at 17150 Fremont Lane, Yorba Linda, California 92886 (Property). After paying off the trust deed, all senior liens, and undisputed claims, Petitioner sought to deposit the surplus funds of \$393,366.84 with the court and be discharged from responsibility for distribution of the surplus funds. The court conducted a hearing on the petition on March 5, 2026. Prior to that hearing, claimant Xin Yang (Yang) filed a claim to the entirety of the surplus funds. At the hearing, the court granted the petition, ordered Petitioner to deposit the surplus funds with the court, and set today’s hearing to address any and all claims to the surplus funds. The court explained it could not grant Yang’s claim at that time because the code required the hearing on any claims to surplus funds to be conducted after the funds are deposited